

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FLOR MARQUEZ,

Petitioner

VS.

CRYSTAL V. MARQUEZ,

Respondent

) Case Number: FDI-25-802240

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: BIFURCATION OF STATUS OF MARRIAGE; REQUEST FOR
ORDER RE: PRESERV. COMM. ASS. AND ALLOCATION OF DEBT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

I. Respondent's Request for Bifurcation and Termination of Marital Status Filed 2/10/26

A. Procedural History

- 1) The parties are Petitioner Flor Marquez and Respondent Crystal Marquez.
- 2) On 11/24/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 5/27/22 and date of separation is 11/5/25 for a marriage of 3 years and 6 months.
- 3) On 12/5/25, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 5/27/22 and date of separation is 11/5/25 for a marriage of 3 years and 6 months.
- 4) On 2/10/26, Respondent filed a Request for Order seeking bifurcation of trial and termination of marital status attached to which is form FL-315 (Request for Separate Trial). The matter was set for hearing on 4/28/26.

- 1 5) On 2/19/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for
2 Order. Petitioner states Respondent has not shown good cause for bifurcation and termination of
3 marital status and Petitioner and Petitioner's daughter (who is not Respondent's child) would lose
4 health and mental health treatment as a result of bifurcation and termination of marital status,
5 which they receive through Petitioner's Veteran's Affairs entitlements.
- 6 6) On 2/25/26, Respondent filed a Reply Declaration. Respondent asserts that Petitioner has access
7 to employer-sponsored health insurance and Petitioner's adult daughter is not a child of the
8 marriage.
- 9 7) On 4/10/26, Petitioner filed a Request to Reschedule Hearing due to a prior work obligation at the
10 United States Immigration Court, which was granted over Respondent's objection (filed 4/13/26).
11 The matter was continued to 6/4/26.

12 **B. Findings and Order**

- 13 1) **The parties are ordered to appear.**
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15 II. Petitioner's Request for Order filed 4/10/26

16 **A. Procedural History**

- 17 1) At the prior 4/26/26 hearing, the Court ordered, in pertinent part: Respondent is permitted to stay
18 in the property located at 20095 River Blvd. Mote Rio, CA 9546 to prepare and list the property
19 for sale within 7 days; Respondent shall cooperate with the realtor to sell the property.
- 20 2) On 4/10/26, Petitioner filed a Request for Order seeking: (a) an order requiring Respondent to
21 promptly execute all escrow, title, and loss mitigation requirements to clear an installation loan
22 (Good Leap loan) lien on the property; and (b) allocation of the GoodLeap loan (approximately
23 \$28,391.60) to Respondent as her sole and separate debt, with an order that Petitioner will be
24 indemnified and held harmless for all resulting damage to the community estate caused by
25 Respondent's failure to payoff of the GoodLeap loan and clear the GoodLeap loan lien on the
26 property. Petitioner asserts that Respondent unilaterally encumbered the property through a
27 GoodLeap loan taken in her name only during marriage without Petitioner's knowledge or
28 consent. This loan created a UCC lien on the property. Petitioner states the GoodLeap loan must
29 be paid off and a UCC termination recorded before the property can be sold. Petitioner asserts the

property is in active escrow with Fidelity National Title Company and the sale is anticipated to result in a deficiency without including the GoodLeap loan.

- 3) On 4/20/26, Petitioner filed a supplemental declaration, attached to which is a UCC Financing Statement by GoodLeap, LLC.
- 4) On 4/30/26, Petitioner filed a supplemental declaration attached to which is a forbearance plan offer for the property from Planet Home Lending for the period of 5/1/26 – 7/1/26.
- 5) On 4/30/26, Petitioner filed a supplemental declaration seeking a psychiatric evaluation of Respondent and appointment of an ellisor to execute a deed in lieu application by 7/26/26 to avoid foreclosure on the property. Petitioner asserts that Planet Home Lending requires the property be listed for 4 months before they will accept a deed in lieu application, which is due by 7/26/26 (within a month of when the forbearance period expires). Otherwise, Planet Mortgage may proceed to foreclosure sale. Petitioner requests appointment of an ellisor to sign: (a) all documents required by Planet Mortgage to complete the deed in lieu of foreclosure or short sale of the property; and (b) all documents required to release, satisfy, or resolve the GoodLeap lien encumbering the property.
- 6) On 5/1/26, Respondent filed a Request to Reschedule Hearing. Respondent seeks 45 days for stabilization of new psychiatric medicine. Respondent asserts she is not adequately able to prepare for or participate in the hearing.
- 7) On 5/1/26, Petitioner filed a Responsive Declaration to Request to Reschedule Hearing in opposition to Petitioner's request asserting imminent Court intervention is needed because the property is at risk of foreclosure.
- 8) On 5/21/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for Order. Respondent asserts that she has fully cooperated with the sale of the property; however, the property is substantially over-encumbered and will inevitably result in a short sale or proceed to foreclosure. Respondent disputes Petitioner's characterization of the GoodLeap loan. Respondent states the forbearance period can be extended. It is Respondent's position that characterization and allocation issues should be reserved for trial. Respondent requests a Mandatory Settlement Conference so the matter may proceed toward final resolution.
- 9) On 5/28/26, Petitioner filed an additional supplemental declaration.

1 **B. Findings and Order**

2 1) As a preliminary matter, the Court declines to consider Petitioner's Supplemental Declaration
3 filed 5/28/26 as neither the Code of Civil Procedure, the Rules of Court, nor the San Francisco
4 Local Rules permit for the filing of such pleading without prior leave of Court.

5 2) **The parties are ordered to appear.**
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